

HOUSE BILL 1678

By Sparks

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 40, relative to contraband in penal
institutions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-16-201, is amended by deleting subsection (c) and substituting:

(1)

(A) Except as provided in subdivision (c)(1)(B), a violation of subdivision (b)(1)(A) or (b)(2)(A) is a Class C felony.

(B) A violation of subdivision (b)(1)(A) or (b)(2)(A) is a Class B felony if the violation resulted in the death of another person.

(2)

(A) Except as provided in subdivision (c)(2)(B), a violation of subdivision (b)(1)(B), (b)(1)(C), or (b)(2)(B) is a Class D felony.

(B) A violation of subdivision (b)(1)(B), (b)(1)(C), or (b)(2)(B) is a Class C felony if the violation resulted in the death of another person.

(3)

(A) Except as provided in subdivision (c)(3)(B), a violation of subdivision (b)(2)(C) is a Class E felony. A first violation is punishable only by fine. A second or subsequent violation is punishable only by a fine of three thousand dollars (\$3,000).

(B) A violation of subdivision (b)(2)(C) is a Class D felony if the violation resulted in the death of another person.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.